

District-Kushtia

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr Justice Md Atoar Rahman

Civil Revision No 2891 of 2008

Rama Debi being dead her heirs 1(Ka)
Nilesh Kumar Agarwala and others

...pre-emptor-appellant-petitioners

- versus-

1(Ka) Md. Monjoor Kader being dead his
heirs 1(Ka)-1 Jahanara Ferdous Eti and others

...pre-emptee-respondents-opposite parties

Mr Md Nurul Amin, Senior Advocate with

Mr Liton Ranjan Das, Advocate

...for the pre-emptor-appellant-petitioners

Mr Abdul Barik, Advocate

...for the pre-emptee-respondents-opposite parties

Heard on: 06.12.2024, 07.12.2024,
13.12.2023, 01.01.2024, 30.01.2024 and
31.01.2024

Judgment on: 20.02.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite parties No 1(Ka) to 1(Jha) to show cause as to why the judgment and order dated 10.02.2008 passed by the learned Additional District Judge, First Court, Kushtia, in Miscellaneous Appeal No 20 of 2005 affirming those dated 03.05.2005 passed by the learned Joint District Judge, Second Court, Kushtia in Miscellaneous Case No 02 of 1996 should not be set

aside and/or passed such other or further order(s) as to this court may seem fit and proper.

The short facts for the purpose of disposal of the Rule are that the predecessor-in-interest of the present petitioner Nimai Chand Agorwala as pre-emptor filed a miscellaneous case being Miscellaneous Case No 02 of 1996 for pre-emption under section 24(1) of the Non-Agricultural Tenancy Act, 1949 in the Court of Sub-Judge, Now Joint District Judge, Second Court, Kustia stating, *inter alia*, that the land measuring an area of .66 acres in the CS & SA plot No 247/1035 under CS & SA Khatians No 317 & 384 respectively belonged to Hariram Agarwala and the seller opposite Party No 2, Lata Debi in equal share. Hariram Agarwala having instituted Title Suit No 28 of 1974 against Lata Debi obtained compromise decree on 25.03.1974. After demise of Hariram Agarwala the pre-emptor and the opposite parties No 3 to 7 inherited his share. The husband of the seller opposite party No 2 Krisnalal Agarwala previously sold .04 acres of land to another person. Thereafter the seller opposite party No 2 has sold out remaining .29 acres of land from undivided dwelling house on 23.09.1995 by the registered deed No 2776 of 95 to the predecessor-in-interest of the present opposite parties Haji Md Insan Ali, a stranger in the case land, without serving any notice. Hence, the case was filed seeking pre-emption.

The original pre-emptee contested the case by filing written objection stating, *inter alia*, that Hariram Agarwala had no title in the case holding and, as such, the pre-emptor did not inherit any portion of the case land for which he was not a co-sharer tenant thereto. It was further contended that the predecessor of the pre-emptor Hariram Agarwala got his name mutated through Miscellaneous Case No 15/13(54)/75-76 and having been separated jama a new holding was created as such, the pre-emptor was not a co-sharer in the case land for which the pre-emption case was not maintainable in law. Thus, the pre-emptee prayed for rejection of the pre-emption case. It was further stated that after purchase the pre-emptee had improved the case land spending taka 3,00,164.00 by erecting houses.

After hearing the learned Judge of the trial court dismissed the pre-emption case by his judgment and order dated 30.05.2005 holding that the pre-emptor was not a co-sharer tenant in the case holding.

Being aggrieved by and dissatisfied with the above judgment and order dated 03.05.2005 the pre-emptor as appellant preferred an appeal being Miscellaneous Appeal No 20 of 2005 in the Court of District Judge, Kushtia. On transfer the appeal was heard by the learned Additional District Judge, First Court, Kushtia who after hearing disallowed the same by his judgment and order dated 10.02.2008 and affirmed the judgment and order passed by the trial court.

Being aggrieved by and dissatisfied with the above judgment and order passed by learned Additional District Judge the pre-emptor-appellant moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule.

Mr Md Nurul Amin, the learned Senior Advocate appearing on behalf of the petitioners has submitted that in view of the decisions made by the Hon'ble Appellate Division in the cases of *Aminullah (Md) and others Vs Serajul Huq and others*, 65 DLR (AD) 82, *Harunur Rashid being dead his heirs Mahbuba Rashid and others Vs Afroja Khanom and others*, XV ADC (2018) 20 and *Selina Gulshan Ara Gul Hasna Vs Mushiur Rahman being dead his heirs Asmaul Hasan and others*, 73 DLR (AD) 54 in a case of pre-emption under section 24 (1) of the Non-Agricultural Tenancy Act, 1949 if a co-sharer tenant owns a portion of land in any plot, he is to be treated as a co-sharer in the entire plot even if the land of that plot is recorded in more than one khatians and in the event of transfer of a portion of land of that plot appearing in another khatian a co-sharer tenant can file pre-emption application under above section. But learned Judges of both the courts bellow failed to distinguish between 'co-sharer in the land' and 'co-sharer in the holding' and ultimately learned Judge of the appellate court committed an error of law resulting in an error in his decision occasioning failure of justice in dismissing the miscellaneous appeal and affirming those dated 03.05.2005 passed by the learned trial Judge dismissing the

Miscellaneous Case No 02 of 1996 on the basis of erroneous view and, as such, the same is liable to be set aside.

On the other hand, Mr Md Abdul Barik, the learned Advocate appearing on behalf of the opposite party has submitted that both the Judges of the courts below rightly and perfectly decided that through mutation case the jama had been separated and through separation of "Jama" (holding) the predecessor of the pre-emptor had sub-divided the original holding and thereafter by publication of two separate khatians in the names of Hariram Agarwala, the predecessor-in-interest of the petitioners, and the seller opposite party Lata Debi during RS operation Hariram Agarwala himself had lost his co-sharership in the case holding as well as in the case land sought to be pre-empted, and thereby the pre-emptor was not entitled to get an order of pre-emption and, as such, the Rule is liable to be discharged. In support of his submissions he has referred to the case of *Abul Kasem Md Kaiser Vs Md Ramjan Ali and others* 21 ALR (AD) 18.

I have heard the submissions of the learned Advocates for both the parties and perused the lower courts' records along with the impugned judgment and connecting materials on record.

Although in the pre-emption application it has been stated that the land measuring an area of .66 acres under plot No 247/1035 recorded in the CS Khatian No 317 and SA Khatian No 384 belonged to Hariram Agarwala and the seller opposite Party No 2, Lata Debi in

equal share, but neither the CS nor the SA Khatian was recorded in the name of Hariram Agarwala. However, on perusal of the exhibits 2, 3 & 4 it appears that subsequently Hariram Agarwala having instituted Title Suit No 28 of 1974 obtained compromise decree on 25.03.1974 and by dint of such decree he established his title and co-sharership in the case holding. It is surprising that present opposite party No 3 (also opposite party No 3 in the pre-emption application) Bimol Kumar Agarwala claiming himself as appointed attorney of the substituted pre-emptor deposed on her behalf as PW 1. However, P W-1 admitted that Hariram Agarwala and Lata Debi got their names mutated. It is not disputed that by separation of jama a new holding SA 384/2 was created in the name of Hariram agarwala. On perusal of the RS Khatians No 719 (exhibit Kha) & 831 (exhibit Gha) (finally published in 1987, much earlier of the transfer in question) it transpires that after above subdivision of joint tenancy under section 117 of the State Acquisition and Tenancy Act, 1950 by the above miscellaneous case, during RS operation the case land was recorded in two separate holdings in the names of Lata Debi, the seller opposite party and father of the original pre-emptor Hariram Agarwala respectively, though the entire land has been recorded in one plot ie plot No 61. On perusal of the pre-emption application and the certified copy of the sale deed in question (exhibit 5) it also appears that the case land is under pawrshava holding No 425.

The only issue is to be determined, whether by the above subdivisions of joint tenancy and thereafter by creation of two independent separate holdings the predecessor of the pre-emptor had lost his co-sharership in the case land for which the pre-emptor was not entitled to get an order of pre-emption under section 24(1) of the Non-Agricultural Tenancy Act, 1949.

I have gone through the cases of *Aminullah (Md) and others Vs Serajul Huq and others*, 65 DLR (AD) 82, *Harunur Rashid being dead his heirs Mahbuba Rashid and others Vs Afroja Khanom and others*, XV ADC (2018)20 and *Selina Gulshan Ara Gul Hasna Vs Mushiur Rahman being dead his heirs Asmaul Hasan and others*, 73 DLR (AD) 54 referred to by the learned senior Advocate Mr Md Nurul Amin and *Abul Kasem Md Kaiser Vs Md Ramjan Ali and others*, 21 ALR (AD) 18 referred to by the learned Advocate Mr Abdul Barik.

In all the above three cases referred to by Mr Nurul Amin their lordships were pleased to make identical principles that in a case of pre-emption under section 24 of the Non-Agricultural Tenancy Act, 1949 if a co-sharer tenant owns a portion of land in any plot, he is to be treated as a co-sharer in the entire plot even if the land of that plot is recorded in more than one Khatians and he would be entitled to get an order of pre-emption.

On the other hand, in the case of *Abul Kasem Md Kaiser Vs Md Ramjan Ali and others* 21 ALR (AD) 18, referred to by Mr Abdul Barik,

their lordships having thoroughly discussed were pleased to settle principles on the same issue to the effect that the right of pre-emption under section 24 of the Non-Agricultural Tenancy Act has been provided only to the co-sharer tenant in the land, but if a tenant separates his Jama even by mutation case he loses his co-sharership in the land and, as such, he would not be entitled to get an order of pre-emption.

Now the question is which of the above principles laid down by the Hon'ble Apex Court has to be followed. Among the above mentioned cases the judgment in the *Abul Kasem's case* {21 ALR (AD) 18} referred to by Mr Abdul Barik was delivered by their lordships Mr Justice Muhammad Iman Ali, Mr Justice Mirza Hussain Haider and Mr Justice Abu Bakar Siddiquee on 05 February, 2020 that is the latest one. On the other hand, the judgments referred to by Mr Md Nurul Amin in the (a) *Aminullah (Md)'s case* {65 DLR (AD) 82} delivered by their lordships Mr Justice Md Muzammel Hossain CJ, Mr Justice Surendra Kumar Sinha, Mr Justice Md Abdul Wahhab Miah, Madam Justice Nazmun Ara Sultana, Mr Justice Syed Mahmud Hossain & Mr Justice Muhammad Iman Ali on 21 November 2012, (b) *Harunur Rashid's case* {XV ADC (2018)20} delivered by their lordships Mr Justice Md Abdul Wahhab Miah, Mr Justice Syed Mahmud Hossain, Mr Justice Muhammad Iman Ali, Mr Justice Hasan Foez Suddique & Mr Justice Mirza Hussain Haider on 25 October 2017 and (c) *Selina*

Gulshan Ara's case { 73 DLR (AD) 54} delivered by their lordships Mr Justice Muhammad Iman Ali, Mr Justice Mirza Hussain Haider and Mr Justice Abu Bakar Siddiquee on 11 February 2019.

It appears that the above mentioned judgments reported in *21 ALR (AD) 18* and *73 DLR (AD) 54* were passed by the same Bench which is smaller and the judgments reported in *65 DLR (AD) 82* and *XV ADC (2018) 20* were passed by the larger Benches. It is significant that the smaller Bench comprising of the their lordships Mr Justice Muhammad Iman Ali, Mr Justice Mirza Hussain Haider and Mr Justice Abu Bakar Siddiquee during delivery of the judgment in the *Abul Kasem's case {21 ALR (AD) 18}* changed its previous view taken just before one year in the *Selina Gulshan Ara's case {73 DLR (AD) 54}*. Another aspect is that the Hon'ble Presiding Judge of the smaller Bench his lordship Mr Justice Muhammad Iman Ali was also party to both the judgments passed by the larger Benches in the cases of *Aminullah (Md) {65 DLR (AD) 82}* and *Harunur Rashid {XV ADC (2018)20}*

Considering the above facts and circumstances, I am of the opinion that the latest view taken by the Hon'ble Apex Court in the case of *Abul Kasem Md Kaiser Vs Md Ramjan Ali and others, 21 ALR (AD) 18* is binding upon us and in view of the latest decision the predecessor of the pre-emptor Hariram Agarwala had lost his co-sharerships in the case land by separating the Jama having mutated his

name and also by publication of separate two khatians in his name and the name of the seller opposite party Lata Debi during RS operation in respect of the land in question.

Though the learned Judges of the trial court as well as of the appellate court were in confused about '*holding*' and '*land*' in connection with section 96 of the State Acquisition and Tenancy Act, 1950 and section 24 of the Non-Agricultural Tenancy Act, 1949, but ultimate decisions of both the judges are found correct. Thus, the learned Judge of the appellate court by the impugned judgment and order did not commit any error of law resulting in an error in his decision occasioning failure of justice in dismissing the miscellaneous appeal and affirming those dated 03.05.2005 passed by the learned trial Judge dismissing the Miscellaneous Case No 02 of 1996 and accordingly, I do not find any substance in the Rule.

Resultantly, the Rule is discharged without any order as to cost and the impugned judgment and order is hereby affirmed.

Let the lower courts' records along with a copy of this judgment be transmitted at once.